

TENTATIVE RULING

Sergio Perez
v.
US Benefits Advisors, LLC, et al.
24CV004034

Plaintiff's Combined Motion to Compel Further Responses to First Set of Discovery

Hearing Date: June 26, 2026

In a combined motion with six separate statements that do not comply with California Rules of Court, rule 3.1345, Plaintiff Sergio Perez ("Plaintiff") requests an order compelling each of Defendants, US Benefits Advisors, LLC ("USBA") and M&M Cellular Solutions, LLC ("MMC") (collectively, "Defendants"), to provide additional responses to three sets of written discovery. The hearing is **CONTINUED** to September 4, 2026, at 8:30 a.m. in Department 14 to allow (1) Plaintiff to correct procedural irregularities in his motion, and (2) the parties to informally resolve the disputed issues through meet and confer or an informal discovery conference.

Although filed as one motion, Plaintiff should have submitted six separate motions to address each of the six different sets of discovery, even if they overlap. Using a single motion for all these issues is procedurally incorrect and does not promote judicial efficiency.

The Court might have only warned Plaintiff about future filings and considered the motion's merits. However, issues with the separate statements prevented this. Specifically, the separate statements do not include Defendants' exact responses or objections to the written discovery, which the Court needs to evaluate the parties' positions. [Cal. Rules of Ct., rule 3.1345, subd. (c).] For example, in Plaintiff's Separate Statement regarding USBA's alleged inadequate responses to Special Interrogatory Nos. 3 and 19, Plaintiff failed to include USBA's exact answer or objection. Instead, Plaintiff mostly references MMC's responses to those interrogatories. As Judges Weil and Brown highlight in their leading treatise, "Don't overlook the tactical advantage of your separate statement. This is the **key document** the court will look at before reviewing opposing papers. Therefore, it is the opportunity to state the argument for your client's position succinctly and convincingly. ***Avoid generalities or reference back to arguments made in earlier papers.***" [Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2026) ¶ 8:1151.1 (emphasis added).]

In light of the foregoing, the Court orders Plaintiff to do the following:

- Re-file this single motion as six separate amended motions at least 16 court days before September 4, 2026.
- Include an amended separate statement with each revised motion that fully complies with California Rules of Court, rule 3.1345, including the exact response of each Defendant to the discovery at issue.

- Contact the Clerk's office to ask about any additional filing fees that might be required for five of the six amended motions.

The Court further orders the parties to do the following:

- All papers must be filed and served in accordance with the timing requirements of Code of Civil Procedure section 1005. **No new arguments will be accepted in the new filings.** Because the original motion was filed on time, the 45-day filing deadline is not waived by this continuance or re-filing.
- Any opposition and reply papers to the amended motions must be filed and served in accordance with Code of Civil Procedure section 1005, based on the new hearing date of September 4, 2026. **Once again, no new arguments will be permitted in the new filings.**
- The parties shall further meet and confer either in person or by videoconference, and submit a joint declaration on the discovery status at least 10 court days prior to the continued September 4, 2026, hearing. They should also consider requesting an Informal Discovery Conference.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling. The Case Management Conference and Order to Show Cause hearing set for June 26, 2026, at 8:30 a.m. is **MAINTAINED.**

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.